

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

OSCAR TORIBIO

Plaintiff,

vs.

CITY OF NEW YORK/THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER WILLIAM FLAHERTY, TAX ID NO. 948288 NEW
YORK CITY POLICE OFFICERS "JOHN DOE 1-2" SAID DEFENDANTS'
TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY
INTENDED TO DESIGNATE THOSE POLICE OFFICERS,

Defendant(s)

Index No.: 155728/2014

Date Purchased: 6/11/2014

AMEDNDED SUMMONS

Plaintiffs designate New York County
as the place of trial.

The basis of venue is:
Plaintiff's address:
601 W 162nd Street
New York, NY

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 19, 2014

STEVEN ADAM RUBIN & ASSOCIATES, PLLC
STEVEN ADAM RUBIN
Attorneys for Plaintiff(s)
71 West 23 Street, Suite 1623
New York, New York 100010
212-643-5402

TO: ZACHARY CARTER
CORPORATION COUNSEL
Attorneys for CITY OF NEW YORK and The New York City Police Department
100 Church Street
New York, New York 10007

POLICE OFFICER WILLIAM FLAHERTY, TAX ID NO. 948288
26 PCT.
520 W 126TH STREET
NEW YORK, NY 10027

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

OSCAR TORIBIO

Plaintiff,

vs.

CITY OF NEW YORK/THE NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER WILLIAM FLAHERTY, TAX ID NO. 948288 and NEW
YORK CITY POLICE OFFICERS "JOHN DOE 1-2" SAID DEFENDANTS'
TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY
INTENDED TO DESIGNATE THOSE POLICE OFFICERS,

Defendants

Index No.: 155728/2014
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VERIFIED COMPLAINT

Plaintiff by his attorneys Steven Adam Rubin & Associates, PLLC for his complaint herein, upon information and
belief, respectfully alleges:

1. At all times hereinafter mentioned, plaintiff is natural person residing in New York County, State of New York.
2. Upon information and belief, defendant THE CITY OF NEW YORK was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, at all times hereinafter mentioned, defendant the CITY OF NEW YORK, by its agents, servants and/or employees operated and maintained a police force known as the NEW YORK CITY POLICE DEPARTMENT, the headquarters of which are located at One Police Plaza, New York, New York.
4. That plaintiff has complied with all the conditions precedent to the bringing of this action, and within ninety (90) days after the date of the occurrence herein, on April 14, 2014, plaintiff duly served a written notice of claim upon the Comptroller of the CITY OF NEW YORK, pursuant to law, said notice being verified by oath of plaintiffs, specifying their intention to sue by commencing an action against the defendant, CITY OF NEW YORK and THE NEW YOUR CITY POLICE DEPARTMENT for false arrest, false imprisonment, violation of civil rights, personal injuries and negligently hiring, training,

1 assault, batter and violation of the State and Federal Constitutions, as well as for negligent hiring,
2 training and/or supervision of the agents, servants and /or employees of the City of New York and the
3 New York City Police Department, including, but not limited to NYPD Officer William Flaherty and
4 John Doe Police Officers 1-2 , involved in the investigation and/or arrest of plaintiff OSCAR TORIBIO
5 on or about February 18, 2014

- 6 5. That at least 30 days have elapsed since the service of the claim and that adjustment or payment has
7 been neglected or refused.
- 8 6. As noted, a Notice of Claim was filed on April 14, 2014, and on June 19, 2014 a hearing pursuant to
9 GML 50-h (5) was held.
- 10 7. That this action is commenced within the applicable statute of limitations, within 1 year and 90 days of
11 the date of accrual.
- 12 8. That at all times hereinafter mentioned, defendant POLICE OFFICER WILLIAM FLAHERTY, TAX ID
13 NO. 948288 NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2" were members of the Police
14 Department of the City of New York, and were acting during the course of their employment with, for
15 the business uses and purposes of, and within the scope of their employment with the Police
16 Department of the City of New York and of the defendant, CITY OF NEW YORK.

17 **FIRST CAUSE OF ACTION**

- 18 9. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above
19 paragraphs with the same force and effect as if more fully set forth herein.
- 20 10. That on February 18, 2014, Defendants the CITY OF NEW YORK/ THE NEW YORK CITY POLICE
21 DEPARTMENT and its employee, agents and/or servants, specifically POLICE OFFICER WILLIAM
22 FLAHERTY, TAX ID NO. 948288 NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2" SAID
23 DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED
24 TO DESIGNATE THOSE POLICE OFFICERS, unlawfully, illegally, unjustifiably, intentionally,
25 maliciously, wantonly, recklessly, and without probable cause, reason or justification, arrested and
detained plaintiff OSCAR TORIBIO.

1 11. That the aforesaid arrest and confinement of plaintiff was caused solely and wholly through and by
2 reason of the culpable acts and conduct of the defendants their agents, servants and/or employees
3 acting under their employment and within the scope of their authority without any warrant or other
4 legal process and without authority of the law and without any reasonable cause or belief that the
5 plaintiff had committed any crime and with no culpable conduct on the part of the plaintiff contributing
6 thereto.

7 12. That by reason of the aforesaid, the plaintiff was confined for a period of approximately 20 hours.

8 13. That the plaintiff was conscious of his confinement.

9 14. That the plaintiff did not consent to his confinement.

10 15. The confinement of the plaintiff by members of the CITY OF NEW YORK/ THE NEW YORK CITY
11 POLICE DEPARTMENT and its employee, agents and/or servants was not privileged.

12 16. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was denied his
13 liberty, and caused to sustain serious, severe and painful mental injuries together with humiliation,
14 ridicule, degradation of his good character and damage to his good name, and he became
15 incapacitated and was unable to attend to his usual duties.

16 17. This action falls within one or more of the exemptions set forth in CPLR §1602.

17 18. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

18 **SECOND CAUSE OF ACTION**

19 19. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above
20 paragraphs with the same force and effect as if more fully set forth herein.

21 20. That on FEBRUARY 18, 2014, Defendant CITY OF NEW YORK/THE NEW YORK CITY POLICE
22 DEPARTMENT, its agents, servants and/or employees, specifically POLICE OFFICER WILLIAM
23 FLAHERTY, TAX ID NO. 948288, NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2" SAID
24 DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED
25 TO DESIGNATE THOSE POLICE OFFICERS unlawfully, illegally, unjustifiably, intentionally,

maliciously, wantonly, recklessly, and without probable cause, reason or justification stripped
searched plaintiff herein.

21. That Defendant CITY OF NEW YORK/THE NEW YORK CITY POLICE DEPARTMENT, its agents,
servants and/or employees, specifically POLICE OFFICER WILLIAM FLAHERTY, TAX ID NO.
948288 AND NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2" SAID DEFENDANTS TRUE
NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE
THOSE POLICE OFFICERS unlawfully, illegally, unjustifiably, intentionally, maliciously, wantonly,
and recklessly violated the Plaintiff's constitutional rights by conducting an illegal strip search of the
Plaintiff.

22. That strip-searches of arrestees charged with misdemeanors or other minor offenses violate the
Fourth Amendment to the United States Constitution unless there is a reasonable suspicion that the
arrestee is concealing weapons or contraband based on the crime charged, and the circumstances of
the arrest.

23. That DEFENDANT POLICE OFFICER WILLIAM FLAHERTY, TAX ID NO. 948288 and NEW YORK
CITY POLICE OFFICERS "JOHN DOE 1-2" had no reasonable suspicion that the Plaintiff was
concealing evidence underneath clothing.

24. That the scope of the intrusion of the strip search was far too invasive to justify it.

25. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries.

26. This action falls within one or more of the exemptions set forth in CPLR §1602.

27. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

28. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the above paragraphs
with the same force and effect as if more fully set forth herein.

29. That on February 18, 2014, Defendants CITY OF NEW YORK/THE NEW YORK CITY POLICE
DEPARTMENT, its agents, servants and/or employees, specifically POLICE OFFICER WILLIAM
FLAHERTY, TAX ID NO. 948288 and NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2 SAID

1 DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED
2 TO DESIGNATE THOSE POLICE OFFICERS, unlawfully, illegally, unjustifiably, intentionally,
3 maliciously, wantonly, recklessly, and without probable cause, reason or justification battered and
4 used excessive force to effectuate the detention and arrest of plaintiff herein.

5 30. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries and
6 damages.

7 31. This action falls within one or more of the exemptions set forth in CPLR §1602.

8 32. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

9 **FOURTH CAUSE OF ACTION**

10 33. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs
11 with the same force and effect as if more fully set forth at length herein.

12 34. Defendant CITY OF NEW YORK/THE NEW YORK CITY POLICE DEPARTMENT, its agents,
13 servants and/or employees, specifically POLICE OFFICER WILLIAM FLAHERTY, TAX ID NO.
14 948288 and NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2 SAID DEFENDANTS TRUE
15 NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE
16 THOSE POLICE OFFICERS, acting within the scope of their employment did negligently hire, retain,
17 train and supervise Individuals who were unfit for the performance of police duties on FEBRUARY 18,
18 2014 and before.

19 35. That by reason of the aforesaid, the plaintiff sustained severe and permanent personal injuries and
20 damages.

21 36. This action falls within one or more of the exemptions set forth in CPLR §1602.

22 37. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

23 **FIFTH CAUSE OF ACTION**

24 38. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the above paragraphs

25 39. That on FEBRUARY 18, 2014, plaintiff was falsely arrested, by the aforementioned POLICE OFFICER
WILLIAM FLAHERTY, TAX ID NO. 948288 and NEW YORK CITY POLICE OFFICERS "JOHN DOE

1-2 , SAID DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, agents, servants, and/or employees of the defendant, CITY OF NEW YORK, for the aforementioned violations of the Penal Law of the State of New York.

40. That following the aforementioned arrest of the plaintiff on FEBRAURY 18, 2014, plaintiff was unlawfully detained and imprisoned for a period of approximately 20 hours.

41. That said defendant POLICE OFFICER WILLIAM FLAHERTY, TAX ID NO. 948288 and NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2SAID DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS, having the real apparent ability to cause imminent harmful and offensive bodily contact and the power and authority to arrest and detain the plaintiff did so and forcibly detained plaintiff and falsely arrested him.

42. That the acts of forcibly detaining plaintiff and falsely arresting him deprived plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York, without any conduct on the part of plaintiff to so warrant to wit:

- a. In that all of the actions of the defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the plaintiff, to arrest, restrain and imprison the plaintiff without his consent, the plaintiff was at all times conscious of his arrest, did not consent to the false arrest and imprisonment, and said actions were not otherwise privileged; and
- b. The arrest and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under color of statute, ordinances, regulations, customs and usages of the State and City of New York, County of New York, and under the authority of their office as police officers for said County.
- c. That the defendant(s), its agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior

1 and performance of the defendants, their agents, servants and employees; that in their
2 hiring practices in the exercise of their police functions and their failure to enforce the laws
3 of the State and City of New York is evidence of the reckless lack of cautious regard for
4 the rights of the public including plaintiff; in that they exhibited a lack of that degree of due
5 care which prudent and reasonable individuals would show in executing the duties of the
6 defendants; and

7 d. The failure of the defendants, its agents, servants and employees to hire, train, supervise,
8 discipline or in any other way control the defendants, in the exercise of their functions; in
9 that their failure to enforce the laws of the state of New York and The City of New York
10 was and is carried out willfully, wantonly, maliciously and with such reckless disregard for
11 the consequences so as to display a conscious disregard for the dangers of harm and
12 injury to the citizens of the State and City of New York including plaintiff; and

13 e. Due to the acts of the defendants, its agents, servants and employees herein to discipline
14 and properly hire the defendants and the continued employment of the defendants,
15 agents, servants and employees presents a clear and present danger to the citizens of
16 the City and State of New York, County of New York; and

17 f. That the said arrest of plaintiff was procured by the defendants, their agents, servants and
18 employees in this action unlawfully. That the commencement and/or continuation of
19 plaintiff's detention by the defendants was without probable cause and with actual malice;
20 and

21 g. That the defendants, its agents, servants and employees permitted the use of policy
22 and/or drafted policy that was violative of the Constitutional rights of plaintiff; and in that
23 each all of the acts of the defendants, their agents, servants and employees alleged
24 herein, were done not as individuals but under the color and pretense of the statutes,
25 ordinances, regulations, customs and usages of the State of New York, City of New York
and County of Kings, and under the authority of their office as police officers.

1 43. Defendant(s) did not have probable cause to arrest plaintiff, and said act deprived plaintiff of his
2 Constitutional rights as set forth in the Constitution of the United States and the Constitution of the
3 State of New York.

4 44. As a direct result of the illegal actions and conduct on the part of the defendants, their agents,
5 servants and employees, plaintiff was falsely arrested and imprisoned.

6 45. That at all time hereinafter mentioned, defendants, their agents, servants and/or employees,
7 specifically members of the New York City Police Departments were acting under the color of their
8 official capacity and their acts were performed under the color of the policies, statutes, ordinances,
9 rules and regulations of the City of New York and State of New York.

10 46. Said agents, servants and/or employees, specifically members of the New York City Police
11 Department acting under the color of law, have subjected plaintiff and other persons to a pattern of
12 conduct consisting of false imprisonment and arrest at the time said person was lawfully and properly
13 on public property in the City and State of New York, County of Bronx, in denial of rights, privileges
14 and immunities guaranteed plaintiff and other citizens by the Constitution of the United States and the
15 State of New York.

16 47. This systemic pattern of conduct consists of a large number of false arrest and false imprisonment,
17 strip searches and negligence visited upon plaintiff and other citizens by defendants and under color
18 of law, and while carried out under color of law, have no justification or excuse in law and are instead
19 illegal, improper and unrelated to any activity in which police officers may appropriately and legally
20 engage in the course of protecting persons or property or ensuring civil order.

21 48. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom
22 including but not limited to policies and customs concerning the investigative procedures conducted
23 before the effectuation of an arrest; and the hiring, training, supervision, retention and discipline of the
24 CITY OF NEW YORK, its agents, servants and/or employees who are responsible of conducting said
25 investigative tasks.

1 49. That defendant the CITY OF NEW YORK encouraged, approved and/or tolerated the use of
2 misconduct involving false arrests; false imprisonments and strip searches against civilians.

3 50. This systemic pattern of conduct consists of the use of excessive force, the use of strip searches,
4 while effectuating an arrest visited upon plaintiff and other citizens by defendants and under color of
5 law, and while carried out under color of law, have no justification or excuse in law and are instead
6 illegal, improper and unrelated to any activity in which police officers may appropriately and legally
7 engage in the course of protecting persons or property or ensuring civil order.

8 51. That plaintiff's civil and constitutional rights were violated as a result of an official or unofficial custom
9 including but not limited to policies and customs concerning the use of excessive force while
10 effectuating and arrest and the hiring, training, supervision, retention and discipline of the CITY OF
11 NEW YORK, its agents, servants and/or employees who take part in effectuating arrests.

12 52. That defendant the CITY OF NEW YORK encouraged, approved and/or tolerated the use of excessive
13 force while effectuating an arrest.

14 53. That defendant the CITY OF NEW YORK encourage, approve and/or tolerate attempts by the police
15 officers and the New York City Police Department to conceal misconduct by way of the use of
16 excessive force and strip searches, in effectuating an arrest by failing to provide adequate training,
17 supervision and discipline to the officers.

18 54. Although defendants, their agents, servants and/or employees knew or should have known the fact
19 that the aforementioned patterns of conduct are carried out by their agents, servants or employees,
20 said defendants have not taken any steps or made any efforts to halt this course of conduct, to make
21 redress to the plaintiff or other citizen injured thereby, or to take any disciplinary action whatever.
22 against any of their agents, servants or employees.

23 55. The unlawful and illegal conduct of the defendants, their agents, servants and employees and each of
24 them, deprived plaintiff of the following rights, privileges and immunities secured to him by the
25 Constitutions of the United States and the State of New York:

a. The right of plaintiff to be secure in his home

- b. The right of plaintiff to be secure of his person
- c. The right of plaintiff not to be deprived of life, liberty or property without due process of law.
- d. The right of equal protection under the laws of United States of America.

56. That by reason of the aforesaid violations, false arrest and false imprisonment, by the defendants, their agents, servants and employees who conspired together to wrongly deprive plaintiff of his rights and privileges as provided to him in the Constitution of the United States and the New York State Constitution, plaintiff was deprived of his liberty, and was subjected to and caused to suffer great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, and the said plaintiff has been otherwise damaged.

57. This action falls within one or more of the exemptions set forth in CPLR §1602.

58. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

59. Plaintiff repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as if more fully set forth at length herein.

60. That on February 18, 2014 defendant POLICE OFFICER WILLIAM FLAHERTY, TAX ID NO. 948288 and NEW YORK CITY POLICE OFFICERS "JOHN DOE 1-2 SAID DEFENDANTS TRUE NAMES BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE POLICE OFFICERS assaulted and battered plaintiff.

61. That the actions of Defendants in assaulting, battering and strip searching plaintiff were willful, illegal, intentional, malicious and unwarranted.

62. That the actions of defendants were without any just cause or provocation, and caused plaintiff physical and psychological injury.

63. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

65. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, maintained a police force known as THE NEW YORK CITY POLICE DEPARTMENT;

66. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, carelessly, negligently, and recklessly hired applicants for the position of police officers;

67. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, carelessly, negligently, and recklessly trained applicants for the position of police officers;

68. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, carelessly, negligently and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers;

69. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK. by THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out its official duties and/or responsibilities;

70. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK by THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, carelessly, negligently and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal, unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities;

1 71. That as a result thereof plaintiff was maliciously prosecuted; strip searched; unlawfully arrested and
2 imprisoned.

3 72. That the occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the
4 malicious, reckless, negligent, and/or intentional conduct of the defendant, THE CITY OF NEW YORK
5 by THE NEW YORK CITY POLICE DEPARTMENT, its agents, servants and/or employees, as set
6 forth above, without any provocation on the part of the plaintiff contributing thereto, specifically, the
7 negligent and reckless manner in which said defendant hired, trained, supervised, controlled,
8 managed, maintained, inspected and retained its police officers and corrections officers;

9
10 73. That solely by reason of these malicious, reckless, negligent and/or intentional acts of the defendants,
11 its agents, servants and/or employees, plaintiff became and was rendered sick, sore, lame, bruised
12 and disabled, received severe and serious psychological, emotional and social harm experienced
13 great pain and suffering, incurred expenses as a result and will necessarily incur similar expenses in
14 the future; has been unable to attend his usual occupation and avocation in the manner required and
15 has suffered damages as a result, and in other ways sustained a loss of diverse sums of money;

16 74. This action falls within one or more of the exemptions set forth in CPLR §1602;

17 75. The amount exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction;

18
19 WHEREFORE, Plaintiff demands judgment against the Defendants herein on all causes of action, in an
20 amount exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with the
21 costs and disbursements of this action.

22 Dated: New York, New York
June 19, 2014

Yours etc.
STEVEN ADAM RUBIN & ASSOCIATES, PLLC

23
24 BY: STEVEN ADAM RUBIN, ESQ.
71 West 23 Street, Suite 1623
New York, NY 10010
25 212-643-5402

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK

ss:

COUNTY OF NEW YORK

OSCAR TORIBIO, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

DATED: New York, New York

June 19, 2014

Oscar Toribio

OSCAR TORIBIO

Sworn to before me this

June 19, 2014

Mojdeh Rubin

Notary Public

MOJDEH RUBIN
Commissioner of Deeds, City of New York
No. 1-7048
Cert. Filed in New York County
Commission Expires 11/1/14

Index No: 155728/2014 Year: 2014
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vs.

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POLICE WILLIAM FLAHERTY, TAX ID NO. 948288 NEW YORK CITY
POLICE OFFICERS "JOHN DOE 1-2" SAID DEFENDANTS' TRUE NAMES
BEING UNKNOWN TO PLAINTIFF, IT BEING THEREBY INTENDED TO DESIGNATE THOSE
POLICE OFFICERS,
Defendants

LAW OFFICE OF
STEVEN ADAM RUBIN & ASSOCIATES, PLLC
Attorneys for Plaintiff
OSCAR TORIBIO
71 West 23rd Street, Suite 1623
New York, NY 10010
(212) 643-5402

ATTORNEY'S CERTIFICATION

STATE OF NEW YORK COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, does hereby certify, pursuant to 22NYCRR 130-1.1 certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: June 19, 2014

NOTICE OF ENTRY OR SETTLEMENT

PLEASE TAKE NOTICE than an order

NOTICE OF ENTRY

of which the within is a (true) (certified) copy of a
within named court on 2014.

duly entered in the office of the clerk of the

NOTICE OF SETTLEMENT

will be presented for settlement to the Hon.
Court, at on 2014 at o'clock M.

One of the judges of the within named

Dated: June 19, 2014

Yours etc.,

STEVEN ADAM RUBIN, ESQ.